

24VECV04111 24VECV04111

County: los-angeles

Division: Civil Law and Motion

Department: 107

Hearing date: 2026-07-28

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAV%2C107%2C07%2F28%2F2026

Source SHA-256: 99493584d11fe2ffd6dde02a5c19a51a2492a00f1e40a21d1ba30dbe57508b11

Case Number: 24VECV04111 Hearing Date: July 28, 2026 Dept: 107

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Fereydoun

Zaman, et al.,

Plaintiffs,

v.

California

Automobile Insurance Company, et al.

Defendant.

Case Number Department

24VECV04111 107

COURT'S [TENTATIVE] ORDER RE:

Motion

for Summary Judgment,

or

in the alternative, for Summary Adjudication

[Tentative:] Deny

I.

BACKGROUND

Defendant California Automobile

Insurance Company (“Defendant”) issued a homeowner’s insurance policy (the “Policy”) to Plaintiffs Fereydoun Zaman and Roya Zaman (“Plaintiffs”) covering Plaintiffs’ residential property located at 4724 Monarca Drive, Tarzana, California 91356 (the “Subject Property”). (Second Amended Complaint [“SAC”] ¶ 10.) On or about April 5, 2023, a burglary occurred at the Subject Property. (SAC ¶ 14.) The burglary caused damage to the Subject Property and losses of Plaintiffs’ personal property. (SAC ¶ 14.) Plaintiffs reported the burglary to the Los Angeles Police Department and submitted a claim to Defendant. (SAC ¶ 16.)

Plaintiffs retained a contractor, the Croisdale Group (“Croisdale”), to prepare a bid for repairs. (SAC ¶ 18.) Croisdale issued an estimate in the sum of \$110,142.57. (SAC ¶ 18.)

On June 1, 2023, Defendant’s retained agents, Defendant Floorensics, Inc. dba Xactfloors (“Xactfloors”) and David Fitzpatrick, inspected the Subject Property. (SAC ¶ 19.)

On September 12, 2023, Defendant’s claims representative, Michelle Perez, inspected the Subject Property with Defendant’s retained agent, Tim Howard. (SAC ¶ 20.) Howard prepared and submitted a report and estimate to Defendant, which concluded the burglary caused damage to the Subject Property’s flooring, specifically the laminate and “one marble tile in the bar area of the den[.]” (SAC ¶ 21.) Howard prepared an estimate in the sum of \$15,865.56. (SAC ¶ 22.)

On November 30, 2023, Defendant issued Plaintiffs a check in the sum of \$1,180 for replacement of a single marble tile in the den. (SAC ¶ 23.) The scope of work described by Perez’s letter to Plaintiffs described the work to include “CLEAN / PREP AFFECTED AREA, EPOXY FILL, SMOOTH, TEXTURE, CURE, COLOR-MATCH AND SEAL TO MATCH EXISTING

SHEEN.” (SAC ¶ 24.)

On August 27, 2024, Plaintiffs filed a complaint against Defendant and Does 1 through 100, alleging causes of action for: (1) breach of contract; and (2) breach of the implied covenant of good faith and fair dealing.

On January 28, 2025, Plaintiffs filed amendments to complaint identifying Doe 1 as Fitzpatrick and Doe 2 as Xactfloors. (Amendments to Complaint filed 01/28/25.)

On April 1, 2025, Plaintiffs filed a first amended complaint against Defendant, Fitzpatrick, Xactfloors, and Does 1 through 100, alleging causes of action for: (1) breach of contract; (2) breach of the implied covenant of good faith and fair dealing; and (3) negligence.

On July 10, 2025, Plaintiffs filed a second amended complaint against Defendant, Xactfloors, Fitzpatrick, and Does 1 through 100 and alleges causes of action for: (1) breach of contract; (2) breach of the implied covenant of good faith and fair dealing; (3) negligence; (4) negligent misrepresentation; and (5) intentional misrepresentation.

On September 9, 2025, Plaintiffs filed a request to dismiss Defendants Xactfloors and Fitzpatrick and those Defendants were dismissed.

On December 24, 2025, Defendant filed a motion for summary judgment, or in the alternative, for summary adjudication (the “Motion”). On July 9, 2026, Plaintiffs filed an opposition. On July 17, 2026, Defendant filed a reply.

II.

PLAINTIFFS’ OBJECTIONS

Evidence

Grounds

Ruling

Bhatia Declaration ¶¶

2, 4

Improper recitation of

factual matters by attorney declarant without personal knowledge; lacks foundation; conclusory/inadmissible conclusion; hearsay/multiple hearsay.

Sustained

Bhatia Declaration ¶ 3

Inadmissible legal

conclusion and improper opinion testimony from attorney declarant; lacks foundation; conclusory/inadmissible conclusion; hearsay/multiple hearsay.

Sustained

Bhatia Declaration ¶ 5

Improper recitation of

factual matters by attorney declarant without personal knowledge; lacks foundation; conclusory/inadmissible conclusion; hearsay/multiple hearsay.

Sustained

Bhatia Declaration ¶¶

19-27

Inadmissible legal

conclusion and improper opinion testimony from attorney declarant; lacks foundation; conclusory/inadmissible conclusion; hearsay/multiple hearsay.

Sustained

Perez Declaration ¶ 3

Lacks foundation;

speculative; lacking personal knowledge; unauthenticated; hearsay/multiple hearsay.

Overruled

Perez Declaration ¶¶¶

4-17

Lacks foundation;
speculative; unauthenticated; lacking personal knowledge; inadmissible
hearsay; hearsay/multiple hearsay; best evidence rule;
conclusory/inadmissible conclusion.

Overruled

III.

DEFENDANT'S OBJECTIONS

Evidence

Grounds

Ruling

Croisdale Declaration

2:17-18

Lack of foundation;
improper legal conclusion.

Overruled

Croisdale Declaration

3:4-7

Lack of foundation;
improper legal conclusion.

Overruled

Croisdale Declaration

3:8-10

Lack of foundation.

Sustained

Croisdale Declaration

3:10-13

Lack of foundation.

Overruled

Croisdale Declaration

¶¶ 9-10

Lack of foundation.

Overruled

Croisdale Declaration

4:1-4

Lack of foundation.

Overruled

Croisdale Declaration

4:4-9

Lack of foundation;
improper legal conclusion.

Overruled

Croisdale Declaration

4:14-16

Lack of foundation;
improper legal conclusion.

Overruled

Croisdale Declaration

4:17-25

Lack of foundation;
improper legal conclusion.

Overruled

Croisdale Declaration

4:26-5:9

Lack of foundation;
improper legal conclusion; inadmissible opinion testimony; lack of
qualification to provide expert opinions with regard to claims handling
practices.

Overruled

Croisdale Declaration

5:1-13

Lack of foundation;
lack of qualification to provide expert opinions with regard flooring;
improper legal conclusion.

Overruled

Ramsay Declaration

2:19-22

Lack of foundation and
speculation; lack of qualification to provide expert opinions with regards to
claims handling practices; improper legal conclusion.

Sustained

Ramsay Declaration ¶¶

6-9

Lack of foundation and speculation; lack of qualification to provide expert opinions with regard to claims handling practices; improper legal conclusion.

Sustained

Ramsay Declaration

5:6-10

Lack of foundation and speculation; inadmissible opinion testimony; lack of qualification to provide expert opinions with regard to claims handling practices or as to construction/flooring; improper legal conclusion.

Sustained

Ramsay Declaration ¶¶

11-13

Lack of qualification to provide expert opinions with regard to claims handling practices; improper expert testimony.

Sustained

Ramsay Declaration

6:4-11

Lack of foundation and speculation; inadmissible opinion testimony; lack of qualification to provide expert opinions with regard to claims handling practices as to construction industry practices or as to flooring; improper legal conclusion.

Sustained

Ramsay Declaration

6:13-14

Lack of foundation and

speculation; lack of qualification to provide expert opinions with regard to claims handling practices; inadmissible argument; improper legal conclusion.

Sustained

Ramsay Declaration

6:17-18

Lack of foundation;
lack of qualification to provide expert opinions with regard to claims handling practice; improper argument.

Sustained

Ramsay Declaration

6:20-21

Lack of foundation;
lack of qualification to provide expert opinions with regard to claims handling practices; improper argument; inadmissible opinion testimony.

Sustained

Ramsay Declaration

6:27-7:2

Lack of foundation;
inadmissible opinion testimony; lack of qualification to provide expert opinion with regard to claims handling practices; improper argument; improper legal conclusion.

Sustained

Ramsay Declaration ¶ 16

Deposition transcript

speaks for itself; hearsay; lack of qualification to provide expert opinions with regard to claims handling practices; improper argument; improper legal conclusion.

Sustained

Ramsay Declaration

7:8-17

Best evidence rule;

hearsay; lack of qualification to provide expert opinions with regard to claims handling practices; improper argument; improper legal conclusion.

Sustained

Ramsay Declaration

7:18-20

Inadmissible opinion

testimony; lack of qualification to provide expert opinions with regard to claims handling practices; improper argument; improper legal conclusion.

Sustained

Ramsay Declaration ¶¶

18-19

Best evidence rule;

hearsay; lack of qualification to provide expert opinions with regard to claims handling practices.

Sustained

Ramsay Declaration

8:9-13

Inadmissible opinion

testimony; lack of qualification to provide expert opinions with regard to claims handling practices.

Sustained

Ramsay Declaration

8:17-23

Hearsay; improper argument; lack of qualification to provide expert opinions with regard to claims handling practices.

Sustained

Ramsay Declaration ¶¶
21-22

Lack of foundation and speculation; inadmissible opinion testimony; lack of qualification to provide expert opinions with regard to claims handling practices; improper legal conclusion.

Sustained

IV.
TIMELINESS

A motion for summary judgment “may be made at any time after 60 days have elapsed since the general appearance in the action or proceeding of each party against whom the motion is directed or at any earlier time after the general appearance that the court, with or without notice and upon good cause shown, may direct.” (Code Civ. Proc., § 437c, subd. (a)(1).) “The motion shall be heard no later than 30 days before the date of trial, unless the court for good cause orders otherwise. The filing of the motion shall not extend the time within which a party must otherwise file a responsive pleading.” (Code Civ. Proc., § 437c, subd. (a)(3).)¿

¿

Per Code of Civil Procedure section 437c, subdivisions
(a)(2), (b)(2) and (4):

¿

Notice
of the motion and supporting papers shall be served on all other parties to the action at least¿81¿days before the time

appointed for hearing. If the notice is served by mail, the required 81-day period of notice shall be increased by 5 days if the place of address is within the State of California, 10 days if the place of address is outside the State of California but within the United States, and 20 days if the place of address is outside the United States. If the notice is served by facsimile transmission, express mail, or another method of delivery providing for overnight delivery, the required 81-day period of notice shall be increased by two court days . . . An opposition to the motion shall be served and filed not less than 20 days preceding the noticed or continued date of hearing, unless the court for good cause orders otherwise . . . A reply to the opposition shall be served and filed by the moving party not less than 11 days preceding the noticed or continued date of hearing, unless the court for good cause orders otherwise.

Defendant

served Plaintiffs with the Motion by electronic service on December 24, 2025. (Motion pdf p. 468.) The Motion was originally set for hearing May 13, 2026. December 24, 2025, was more than 81 days, plus two court days for electronic service, before May 13, 2026. Thus, the Motion was timely served. The reply was also timely filed. Plaintiffs filed the opposition on July 9, 2026, which was only 19 days before the hearing. Thus, the opposition was untimely filed.

Defendant

did not raise timeliness in the reply. Defendant was also able to timely file a substantive reply. Thus, the court will consider the untimely opposition.

V.

LEGAL STANDARD

“A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding.” (Code Civ. Proc., § 437c, subd. (a)(1).)

“Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119, original italics)

“A defendant moving for summary judgment has the initial burden of presenting evidence that a cause of action lacks merit because the plaintiff cannot establish an element of the cause of action or there is a complete defense.” (Gordon v. Continental Casualty Company (“Gordon”) (2024) 107 Cal.App.5th 89, 99.) “When the defendant moves for summary judgment, in those circumstances in which the plaintiff would have the burden of proof by a preponderance of the evidence, the defendant must present evidence that would preclude a reasonable trier of fact from finding that it was more likely than not that the material fact was true [citation], or the defendant must establish that an element of the claim cannot be established, by presenting evidence that the plaintiff ‘does not possess and cannot reasonably obtain, needed evidence.’” (Padilla v. Rodas (2008) 160 Cal.App.4th 742, 747.)¿

“If the defendant satisfies this initial burden, the burden shifts to the plaintiff to present evidence demonstrating there is a triable issue of material fact.” (Gordon, supra, 107 Cal.App.5th at pp. 99-100.) To establish a triable issue of material fact, the party opposing the motion “must produce substantial responsive evidence[.]” (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 162-163.)¿Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (Gordon, supra, 107 Cal.App.5th at p. 99.)¿

VI.

DISCUSSION

Plaintiffs allege causes of action for breach of contract and breach of the implied covenant of good faith and fair dealing against Defendant. (SAC pp. 8-13.) Plaintiffs also seek punitive damages from Defendant. (SAC Prayer for Relief ¶ 4.)

Defendant moves for summary judgment, or in the alternative, for summary adjudication as to the first cause of action for breach of contract, second cause of action for breach of the implied covenant of good faith and fair dealing, and Plaintiffs’ claim for punitive damages. (Motion p. 2.)

Breach of Contract:

The elements of a breach of contract

claim are: (1) existence of a contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach; and (4) resulting damage. (Wall Street Network, Ltd. v. N. Y. Times Co. (2008) 164 Cal.App.4th 1171, 1178.)

Marring Exclusion:

Defendant argues that coverage for the chipped bar tile is excluded by the Policy's marring exclusion. (Motion p. 33.) Defendant cites the Policy as excluding damage caused by "[w]ear and tear, marring, [and] deterioration[.]" (Motion p. 34.) Defendant states there is no reported California appellate case applying the marring exclusion in similar circumstances but cites two Florida cases as supporting a proposition that the damage here was "clearly excluded by the marring exclusion" because it was "caused by bottles and other items dropped on tiles[.]" (Motion p. 34.)

Florida appellate authority is not binding on this court. Further, the two Florida cases cited by Defendant are distinguishable from this matter because they did not discuss whether the matters involved burglaries. In *Ergas v. Universal Property and Cas. Ins. Co.* (Fla. 2013) 114 So.2d 286, 286, a tile was chipped when one of the insured's dropped a hammer on the floor. Similarly, in *Gamero v. Foremost Insurance Company* (Fla. 2017) 208 So.3d 1195, 1196, the tile was damaged when a vase fell.

Defendant submits evidence the damage at issue here arose in the context of a burglary at the Subject Property. (Perez Declaration ¶ 2.) Plaintiffs' counsel "advised that a few bottles were dropped onto the tile flooring in the bar area causing the flooring to crack . . ." (Perez Declaration ¶ 6.) Although the impact causing the damage to the tile may be similar, the circumstances surrounding the incident – here, a burglary – differ from the Florida cases cited above.

Other than the Florida cases, Defendant's Motion lacks authority and reasoned analysis explaining why the broken tile were excluded from the policy. (Motion pp. 33-34.) Moreover, as Plaintiffs note, Defendant also inconsistently argues it paid for the replacement of the damaged marble tiles. (Motion p. 34; Opposition p. 18.)

Thus, the court concludes this argument is meritless.

Reasonably Uniform Appearance:

Defendant argues there was no withholding of policy benefits because its obligation was to restore Plaintiffs' flooring so there "was a reasonably uniform appearance between the replaced tiles and the pre-existing marble tiles." (Motion pp. 34-35.) Defendant argues there are no triable issues of fact here because it paid to replace the laminate flooring and "paid for the repair or replacement of the damaged marble tiles with like, kind and quality tiles." (Motion p. 36.)

In opposition, Plaintiffs argue there are triable issues of fact here because "Defendant limited payment for the marble damage to (1) Fitzpatrick's preliminary and uncertain cost of single-tile replacement (\$1,518.16), Material Specialist's epoxy repair (\$1,180), and unspecified box of tiles for Plaintiffs to determine whether a match is possible (\$665.47, with labor included)." (Opposition p. 19.) Plaintiffs argue that the insurer may not "substitute a fundamentally different material (epoxy polymer) for the damaged material (Crema Marfil marble) and call it a day. An epoxy fill is not marble. It does not have the same physical, chemical, or optical properties as marble . . . It does not age like marble. . . . It does not produce a 'reasonably uniform appearance' with the surrounding marble flooring over time." (Opposition p. 20.)

Title 10 of the California Code of Regulations, section 2695.9, subdivision (a)(2) states:

When a residential or commercial property insurance policy provides for the adjustment and settlement of first party losses based on replacement cost, the following standards apply:

[¶] . . . [¶]

(2) When a loss requires replacement of items and the replaced items do not match in quality, color or size, the insurer shall replace all items in the damaged area so as to conform to a reasonably uniform appearance.

Defendant cites evidence it received a repair estimate in the sum of \$1,180 to replace the damaged marble tile. (Defendant's Separate Statement No. 42; Perez Declaration ¶ 31) Defendant also cites evidence it paid

Plaintiffs \$1,180.00 based on that estimate. (Defendant's Separate Statement No. 43; Perez Declaration ¶ 33.) The estimate is attached as Defendant's Exhibit S. (Perez Declaration ¶ 31; Defendant Ex. S pdf p. 460.) The description of that estimate is to "REPAIR FRACTURE DAMAGE ON ONE FLOORING TILE" and "CLEAN/ PREP AFFECTED AREA, EPOXY FILL, SMOOTH, TEXTURE, CURE, COLOR-MATCH AND SEAL TO MATCH EXISTING SHEEN." (Defendant Ex. S pdf p. 460.)

The court notes there is no evidence specifically noted in Defendant's Separate Statement showing the described epoxy fill would conform the marble tile to "a reasonably uniform appearance", as required by 10 California Code of Regulations, section 2695.9, subdivision (a)(2).

However, even to the extent Defendant had produced such evidence, Plaintiffs' evidence shows there are triable issues of material fact as to whether the referenced repair would conform the marble tile to "a reasonably uniform appearance."

Plaintiffs submit a declaration by a licensed general contractor, Christopher A. Croisdale. (Croisdale Declaration ¶ 2.) Croisdale states:

Epoxy and natural marble are fundamentally different materials with different physical, chemical, and optical properties. Natural marble ages, develops patina, and responds to environmental conditions over time; epoxy does not. Epoxy repair materials do not weather, oxidize, absorb moisture, refract light, polish, or develop patina in the same manner as natural marble. While an epoxy repair may reduce the immediate visual impact of damage, there is no reasonable basis to conclude that the repaired area will continue to remain visually consistent with the surrounding marble as the surrounding natural stone continues to age. Accordingly, the proposed repair does not restore the damaged marble to its original composition, appearance, or long-term performance characteristics and does not return the flooring system to its pre-loss condition.

(Croisdale Declaration ¶ 11.) Croisdale also states that:

The mere availability of replacement stone labeled "Crema Marfil" does not establish that replacement tiles will reasonably match the existing installed flooring. Two

pieces of Crema Marfil obtained from different quarry sections, or even different production areas within the same quarry, are likely to display perceptible differences in color, veining, movement and texture. Achieving a reasonably uniform appearance requires physical comparison of replacement material to the existing floor under identical lighting conditions, which was not done here.

(Croisdale Declaration ¶ 10.)

Accordingly, Plaintiffs produce evidence Defendant's repair estimate using epoxy would not conform the tile to "reasonably uniform appearance" because epoxy is not equivalent to marble. Plaintiffs also produce evidence that it is unknown whether replacing tile would be sufficient because two pieces of the stone "are likely to display perceptible differences in color, veining, movement and texture" and no physical comparison was done here.

(Croisdale Declaration ¶ 10.)

The court finds there are triable issues of material fact relating to the breach of contract cause of action.

Breach of the
Implied Covenant of Good Faith and Fair Dealing:

Defendant argues there are no triable issues of material fact relating to the second cause of action because there is no evidence Defendant engaged in misconduct, Defendant's investigation of Plaintiffs' claim was timely and reasonable, and a genuine dispute existed over the scope of damage. (Motion pp. 39-49.) Defendant also argues bad faith liability does not attach to delays attributable to Plaintiffs. (Motion p. 49.)

In opposition, Plaintiffs argue there are triable issues of material fact because Defendant engaged in a biased investigation. (Opposition pp. 21-24.)

In reply, Defendant argues a genuine dispute existed relating the need to remove and replace the marble flooring. (Reply p. 8.) Defendant states that here, "there is no evidence that the opinion obtained by [Defendant] from David Fitzpatrick as to whether the marble tile needed to be removed, repaired or replaced was contrived or false" and "[a]s a matter of law, the genuine dispute doctrine applies therefore precluding bad faith liability attaching to [Defendant's] claim decision." (Reply p. 9.)

"If an insurer

unreasonably refuses a claim, it is liable for breach of the covenant of good faith and fair dealing inherent in every insurance policy." (Mariscal v. Old Republic Life Ins. Co. (1996) 42 Cal.App.4th 1617, 1623.) "An insurance company may not ignore evidence which supports coverage. If it does so, it acts unreasonably towards its insured and breaches the covenant of good faith and fair dealing." (Id. at p. 1624.)

"In insurance policies, as in all contracts, the law

implies a covenant of good faith and fair dealing, and an insurer's denial or delay in paying policy benefits can give rise to tort damages if the denial or delay was unreasonable." (Fadeeff v. State Farm

General Insurance Co. ("Fadeeff") (2020) 50

Cal.App.5th 94, 101.) "As a close corollary of that principle, it has been said that 'an insurer denying or delaying the payment of policy benefits due to the existence of a genuine dispute with its insured as to the existence of coverage liability or the amount of the insured's coverage claim is not liable in bad faith even though it might be liable for breach of contract.'" (Id.)

"The application

of the genuine dispute doctrine 'becomes a question of law where the evidence is undisputed and only one reasonable inference can be drawn from the evidence.'" (Paslay v. State Farm General Insurance Co. (2016) 248 Cal.App.4th 639, 653.)

"[A]n insurer is entitled to summary judgment based on

a genuine dispute over coverage or the value of

the insured's claim only where the summary judgment record

demonstrates the absence of triable issues [citation] as to whether the disputed position upon which the insurer denied the claim was reached reasonably and in good faith." (Fadeeff, supra, 50 Cal.App.5th 94,

102.) "An expert's testimony will not automatically insulate

an insurer from a bad faith claim based on a biased investigation." (Id.

original italics.) There are "several circumstances where a biased

investigation claim should go to jury: (1) the insurer was guilty of

misrepresenting the nature of the investigatory proceedings ...; (2) the

insurer's employee's lied during the depositions or to the insured; (3) the

insurer dishonestly selected its experts; (4) the insurer's experts were

unreasonable; and (5) the insurer failed to conduct a thorough investigation."

(Id., original italics.) “Put another way, the ‘dispute . . . must be genuine.

An insurer cannot claim the benefit of the genuine dispute doctrine based on an investigation or evaluation of the insured’s claim that is not full, fair and thorough.” (Id., original italics.)

Defendant states in the Motion:

The uncontroverted

evidence establishes that a genuine dispute existed whether damage to a single marble tile required replacement of the marble flooring which was continuous in several rooms of the plaintiffs’ home. The uncontroverted evidence establishes that the three consulting flooring experts retained by CAIC - David Fitzpatrick, Tim Howard and Material Specialist - all concluded the damaged tile can be replaced so that there is a reasonably uniform appearance between the replacement tile and the existing marble floor tiling.

(Motion p. 48.)

In the Motion, Defendant cites no evidence or portion of Defendant’s separate statement to support this paragraph. The court also cannot locate reference in Defendant’s separate statement alluding to this evidence.

Defendant submits Perez’s declaration. Perez has been employed by Mercury Insurance Services, LLC as a property adjuster since 2022. (Perez Declaration ¶ 1.) Perez states the claims representative, Byron De Leon, advised Plaintiff Fereydoun Zaman he was going to handle the dwelling portion of the claim and wanted to schedule an inspection. (Perez Declaration ¶ 3.) De Leon followed up and the inspection was later scheduled for May 15, 2023. (Perez Declaration ¶¶ 3-5.) De Leon inspected the dwelling with Plaintiffs’ counsel and Chris Croisdale present. (Perez Declaration ¶ 6.) De Leon noted there were scratches on the wood flooring and cracked tiles in the bar area. (Perez Declaration ¶ 7.) De Leon advised Plaintiffs’ counsel a flooring expert would be retained to determine whether the flooring was repairable. (Perez Declaration ¶ 7.) De Leon retained David Fitzpatrick of Xactfloors to “assess whether the flooring needed to be replaced.” (Perez Declaration ¶ 7.) De Leon received a repair estimate from Plaintiffs’ counsel from the Croisdale Group totaling \$110,142.57. (Perez Declaration ¶ 8.) This estimate included the cost of replacing the laminate and tile flooring. (Perez Declaration ¶ 8.) Fitzpatrick submitted a report to De Leon, noting the marble flooring was

continuous through various rooms, the laminate flooring was in other rooms, and “noted that the affected areas were a single marble tile in the bar area, a single marble tile in the primary bedroom vanity and a few laminate planks in the family room, primary bedroom and bedroom number 2.” (Perez Declaration ¶ 11.) Fitzpatrick’s opinion was the damage to the marble flooring in the bar area and the chip in the tile in the master bedroom was due to wear and tear and the damage to the laminate flooring was consistent with furniture sliding, not a burglary. (Perez Declaration ¶ 12.) Fitzpatrick also “noted in his report that like, kind and quality Crema Markil marble was available for replacement of the affected marble tiles but like kind and quality laminate flooring had not been located for replacement of the damaged laminate flooring planks.” (Perez Declaration ¶ 13.) Fitzpatrick’s estimate to repair totaled \$9,892.57. (Perez Declaration ¶ 14.) De Leon then prepared a dwelling repair estimate, which adopted the Xactfloors estimate. (Perez Declaration ¶ 16.) The file was transferred to Perez and Plaintiffs’ counsel advised Perez he disagreed with Fitzpatrick’s opinion the marble could be matched. (Perez Declaration ¶¶ 18-20.) Perez asked Tim Howard from Howard’s Flooring Service to conduct an inspection. (Perez Declaration ¶ 21.) Perez inspected the Subject Property with Howard “who agreed to investigate repair options for matching the sole damaged marble tile to the existing marble floor tile.” (Perez Declaration ¶ 23.) On September 12, 2023, Perez prepared a new repair estimate. (Perez Declaration ¶ 24.) Howard’s report “agreed that the laminate wood flooring would need to be replaced.” (Perez Declaration ¶ 27.) Howard also stated the damage to the marble was limited to one damaged tile in the bar area “which could be replaced based upon an opinion received from Michael Hebermehl of Material Specialist.” (Perez Declaration ¶ 27.) Perez contacted Material Specialist by email and Hebermehl said an inspection would be needed to verify repairability. (Perez Declaration ¶ 28.) Material Specialist then provided Perez with a repair estimate for the single damaged marble tile in the sum of \$1,180.00. (Perez Declaration ¶ 31.) Perez “advised plaintiffs’ counsel that an additional payment in the amount of \$1,180 had been issued and [Defendant] was now closing its file in this matter.” (Perez Declaration ¶ 33.)

Based on the evidence discussed above, Perez appears to have based the \$1,180.00 payment for the marble on Material Specialist’s repair estimate. (Perez Declaration ¶¶ 31-33.) This comports with Defendant’s separate statement, which states “On November 29, 2023, CAIC issued payment to the plaintiffs in the amount of \$1,180, based on Material Specialist’s estimate.” (Defendant’s Separate Statement No. 133.)

Plaintiffs submit Perez's deposition testimony. At her deposition, Perez said she agreed with the opinion the marble could be repaired. (Plaintiffs Ex. 1 pdf pp. 46-47.) Perez stated she based this opinion on the three reports by Material Specialist, Xactfloors, and Howard. (Plaintiffs Ex. 1 pdf p. 46.) Perez stated that she took the expert's reports at face value and denied talking to Howard about "the process of repairing cracks and damages to marble tile flooring[.]" (Plaintiffs Ex. 1 pdf pp. 48-49.) Perez also denied speaking on the phone or in-person with Hebermehl. (Plaintiffs Ex. 1 pdf p. 49.) Perez denied having ever seen a "finished product of a repaired marble tile with epoxy fill[.]" (Plaintiffs Ex. 1 pdf p. 50.) Perez agreed that it was her understanding the proposal "would restore the subject home to pre-loss condition" because "it would restore the materials to reasonable uniform appearance." (Plaintiffs Ex. 1 pdf p. 51.) Perez was asked "[b]ut you don't know that; right?" (Plaintiffs Ex. 1 pdf p. 51.) Perez responded "Not until it's completed or attempted." (Plaintiffs Ex. 1 pdf p. 51.) Perez was asked if any attempts to repair the tile were made. (Plaintiffs Ex. 1 pdf p. 51.) Perez responded "[t]hat, I don't know." (Plaintiffs Ex. 1 pdf p. 51.) Finally, Perez was asked "[d]id Material Specialist provide any guarantee that the repair would create a reasonably uniform appearance." (Plaintiffs Ex. 1 pdf p. 52.) Perez responded "[n]ot to Mercury." (Plaintiffs Ex. 1 pdf p. 52.)

Defendant's payment to Plaintiffs was based on Material Specialist's estimate. (Defendant's Separate Statement No. 133.) Pursuant to Title 10 of the California Code of Regulations, section 2695.9, subdivision (a)(2), Defendant's obligation was to conform the marble tile to a "reasonably uniform appearance." Defendant states in the Motion that all three of Defendant's experts, Fitzpatrick, Howard, and Material Specialist "concluded the damaged tile can be replaced so that there is a reasonably uniform appearance between the replacement tile and the existing marble floor tiling." (Motion p. 48.) But the evidence submitted does not support this statement. As for Material Specialist, Perez's declaration indicates Perez "contacted Material Specialist by email inquiring as to the status of any update, inspection, and repairability of the marble tile in the bar area" and Hebermehl said an inspection would be needed to "verify the repairability of the floor." (Perez Declaration ¶ 28.) Perez prepared a payment to Plaintiffs based on Material Specialist's report. (Perez Declaration ¶ 33.) Perez's deposition testimony indicates she took the report at face value, did not talk to Howard or Material Specialist about the repair process, did not speak to Hebermehl in person or on the phone, and understood the process "would restore the subject home to

pre-loss condition” but did not know whether it “would restore the materials to reasonable uniform appearance” “until it’s completed or attempted.” (Plaintiffs Ex. 1 pdf pp. 48-51.) It is unclear to the court why Defendant states in the Motion that all three of the experts concluded the tile could be replaced so there was a reasonably uniform appearance when there is a lack of evidence in the record supporting that fact. In contrast, based on Perez’s deposition testimony, Material Specialist made no such guarantee and Perez did not know whether the process would restore the materials to “reasonable uniform appearance” until it had been completed or attempted. (Plaintiffs Ex. 1 pdf pp. 51-52.)

Plaintiffs’ evidence shows there are triable issues of material fact relating to whether Defendant’s investigation was full, fair, and thorough.

Punitive Damages:

Defendant argues there is no evidence of fraud, malice, or oppression that would support a request for punitive damages. (Motion p. 50.)

In opposition, Plaintiffs state they intend to dismiss their request for punitive damages. (Opposition p. 15.) Accordingly, the court concludes there is no dispute here for the court to resolve.

VII.

CONCLUSION

For the foregoing reasons, the Motion is denied.

Date: July 28, 2026

Judge

Eric Harmon, Department 107, Van Nuys Los
Angeles County Superior Court